

# SENATE . . . . . No. 2533

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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SENATE, June 23, 2025.

The committee on Higher Education to whom was referred the petition (accompanied by bill, Senate, No. 921) of Joanne M. Comerford and Sal N. DiDomenico for legislation to facilitate student financial assistance and establish the FAFSA Trust Fund, reports the accompanying bill (Senate, No. 2533).

For the committee,  
Joanne M. Comerford

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An Act to facilitate student financial assistance.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 69 of the Massachusetts General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by inserting after section 1T the following section:-

3           Section 1U. (a) It is hereby declared to be the policy of the commonwealth to maximize  
4   federal and state postsecondary financial aid options through the encouragement and requirement  
5   of graduating students to submit the applicable application for federal and state financial aid.

6           Before graduating from high school, each student shall submit a free application for  
7   federal student aid, hereafter referred to as the FAFSA, or the state equivalent Massachusetts  
8   application for state financial aid, hereafter referred to as the MASFA.

9           (b) A student is not required to comply with subsection (a) if: (i) the student's parent or  
10   guardian submits a signed form described in subsection (c) indicating that the parent or guardian  
11   authorizes the student to decline to complete and submit the financial aid application; (ii) the  
12   student signs and submits the form referenced in subsection (c) on the student's own behalf if the  
13   student is 18 years of age or older or legally emancipated; or (iii) the student's school files the

form referenced in subsection (c) to be approved by the school district, if the student has not reached 18 years of age.

(c) The department shall develop, and all school districts shall adopt, 2 forms to be used for the purposes of subsection (b), as follows:

(1) A form to be signed by a parent or guardian, or by a student over 18 years of age or legally emancipated. This form shall be written in accessible language, translated into families' preferred languages and require no personal information except for student and parent or guardian (if applicable) names and signatures. The form shall not require any information on citizenship status.

(2) A form filed by the school district on behalf of a student under the age of 18 who is not legally emancipated. The form shall be signed by the principal of the student's school and shall include the following information: (i) attestation that the student meets all other graduation requirements; and (ii) attestation that the school has made a good faith effort to contact the family and to provide any support necessary to submit the FAFSA or MASFA, including at least 3 personalized communications in the family's preferred language.

Prior to completion of high school, each school district shall ensure that every student complies with subsection (a) or (b) and shall provide to each high school student and, if applicable, their parent or guardian, any reasonable support or assistance necessary to comply with this section.

(d) The commissioner shall provide guidance to school districts related to the implementation of this section, including, but not limited to, the distribution of information related to this requirement, reporting requirements for school districts and required

communications to parents and guardians related to all financial aid options for high school students. Each school district shall provide an annual report to the department by October 30 including, but not limited to, the following information: (i) the number of students completing and submitting the FAFSA; (ii) the number of students completing and submitting the MASFA; (iii) the number of students who received an exemption to this requirement through subsection (b) clauses (i), (ii) and (iii) separately and in the aggregate, provided further that this data be broken down by race, ethnicity, primary city or town of residence and such other categories that the department may determine; and (iv) any challenges encountered in implementing subsections (a) and (b) and what financial or other resources are needed to fully implement said subsections. The department shall aggregate the information included in said reports and make said aggregate information publicly available on the department's website.

(e) There shall be established and set up on the books of the commonwealth a separate fund to be known as the FAFSA and MASFA Trust Fund, hereafter referred to as the fund. The fund shall be administered by the commissioner of elementary and secondary education. The fund shall be credited with: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (ii) interest earned on such revenues; and (iii) funds from public and private sources such as gifts, grants and donations to aid districts in supporting students, parents and guardians with submitting the FAFSA and the MASFA. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund.

(f) Amounts credited to the fund may focus on assisting underserved communities across the commonwealth with completing the FAFSA and MASFA, including, but not limited to, those school districts with high concentrations of economically disadvantaged students, and may be

expended, without further appropriation, by the commissioner for the following purposes: (i) to assist with the implementation and execution of section (a), including, but not limited to, staff and administrator training; (ii) to develop related workshops and other support services and systems; and (iii) to facilitate collaboration with stakeholder and community organizations to support students, parents and guardians with submitting the FAFSA and MASFA.

(g) Amounts received from private sources shall be approved by the commissioner and subject to review before being deposited in the fund to ensure that pledged funds are not accompanied by conditions, explicit or implicit, on the implementation of workshops or other programming that may be detrimental to students, parents, guardians or school districts, or that places limitations or restrictions on how funds can be used to support the implementation of this section. The review shall be made publicly available.

(h) The commissioner shall submit an annual report to the clerks of the house of representatives and senate, the joint committee on education and the house and senate committees on ways and means on the fund's activity. The report shall include, but not be limited to: (i) the source and amount of funds received; (ii) the amounts distributed and the purpose of expenditures from the fund, including but not limited to, funds expended to assist school districts in meeting the requirements in section (a); (iii) any grants provided to high schools and other stakeholder organizations; and (iv) anticipated revenue and expenditure projections for the next year.

SECTION 2. Subsections (a) to (d), inclusive, of section 1U of chapter 69 of the general laws shall take effect on October 1, 2027.

80           SECTION 3. Subsections (e) to (h), inclusive, of section 1U of chapter 69 of the general  
81   laws shall take effect on October 1, 2026.